

TENTATIVE RULING

Case: State of California, by and through the Department of Water Resources v. Sierra Northern Railway et al.
Case No. CV2022-1546

Hearing Date: March 13, 2026 Department Eleven 9:00 a.m.

Cross-defendants State of California, acting by and through the Department of Water Resources (“DWR”), Central Valley Flood Protection Board (“CVFPB”), and Sacramento and San Joaquin Drainage District’s (“SJDD”) (collectively, “State defendants”) filed an untimely reply brief and supporting documents. (Code Civ. Proc., § 437c, subd. (b)(4) [a reply to the opposition must be served and filed “not less than 11 days preceding the hearing”]; see also *Steele v. Bartlett* (1941) 18 Cal.2d 573, 574.) Despite being untimely, the Court will consider State defendants’ reply. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

Cross-complainant Sierra Northern Railway’s (“Sierra Northern”) request for judicial notice of exhibits E, G, P, R, T, X, AA, and HH is **GRANTED**. (Evid. Code, §§ 451, subd. (a).) Sierra Northern’s request for judicial notice of exhibits H, J, K, L, N, O, Q, S, U, V, W, Y, Z, BB, CC, DD, EE, FF, GG, II, JJ is **DENIED**. (Evid. Code, §§ 452, subd. (c), (d), (h), 453.) The proffered documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule on Sierra Northern’s objections to evidence nos. 1 through 18 as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).) The Court **SUSTAINS** Sierra Northern’s objections to evidence nos. 19 through 21 as to the financial account numbers only. (Cal. Rules of Court, rule 1.201(a)(2).)

The Court declines to rule on State defendants’ objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

State defendants’ motion for summary adjudication as to the fourth and fifth causes of action (inverse condemnation) is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(2).) The Court finds that State defendants have met their burden of showing that: (1) the statute of limitations applies to Sierra Northern’s inverse condemnation causes of action; and (2) that Sierra Northern is not immune from the statute of limitations. (Code Civ. Proc., §§ 318, 338; *Cobb v. City of Stockton* (2011) 192 Cal.App.4th 65, 70.) However, the Court further finds that State defendants have not met their burden as to when the statute of limitations on Sierra Northern’s inverse condemnation causes of action began to accrue under the stabilization doctrine. (*Pacific Shores Property Owners Assn. v. Department of Fish & Wildlife* (2016) 244 Cal.App.4th 12, 34-37 [“[T]he touchstone for any stabilization analysis is determining when the environmental damage has made such substantial inroads into the property that the permanent nature of the taking is evident and the extent of the damage is foreseeable”]; Evid. Code, § 500; *D’Amico v. Board of Med. Examiners* (1974) 11 Cal.3d 1, 21 [moving party’s evidence must be construed strictly];

Copp v. Paxton (1996) 45 Cal.App.4th 829, 836 [any doubts as to propriety of granting the motion should be resolved in favor of party opposing the motion]; SACC, ¶¶ 31-36, 52-57, 59, 62-65, 67; UMF 4-15.)

State defendants' motion for summary adjudication as to the sixth, seventh, eighth, and ninth causes of action (continuing and permanent trespass and nuisance) is **DENIED**. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(2).) The Court finds that State defendants have not met their burden as to when Sierra Northern's trespass and nuisance causes of action accrued for purposes of filing a claim within the statutory deadline as required by the Government Claims Act. (Gov. Code, §§ 901, 911.2, 945.4; see *Lee v. Los Angeles County Metropolitan Transportation Authority* (2003) 107 Cal.App.4th 848, 855-859 [applying stabilization doctrine to tort claims]; *D'Amico, supra*, 11 Cal.3d at p. 21 SACC, ¶¶ 37, 38, 68-75, 79-83, 87-94, 98-102; UMF 16-30.)

Accordingly, State defendants' motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: UCD J Street Owner LLC v. Walker
Case No. CV2026-0308

Hearing Date: March 13, 2026 **Department Two** **1:30 p.m.**

Request for production:

Defendant Doris Walker's request for production is **DENIED**. (Code Civ. Proc., § 95.) First, defendant failed to file a proof of service at least five court days before the hearing, showing that her request was timely served on plaintiff UCD J Street Owner LLC. (Cal. Rules of Court, rules 3.1300(c), 3.1347(a); Code Civ. Proc., § 1170.8.) Second, defendant did not provide any information as to whether she has: (1) "used all applicable discovery in good faith"; and (2) "attempted to secure the additional discovery by stipulation or by means other than formal discovery." (Code Civ. Proc., § 95, subd. (a).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Defendant Doris Walker's amended demurrer is **OVERRULED**. (Code Civ. Proc., § 430.10.) First, this hearing is less than five court days after defendant filed her notice of demurrer. (Code Civ. Proc., § 1170, subd. (b)(1).) Second, defendant failed to file a proof of service at least five court days before the hearing, showing that her request was timely served on plaintiff UCD J Street Owner LLC. (Cal. Rules of Court, rule 3.1300(c); Code Civ. Proc., § 1170, subd. (b).) Finally, defendant filed her answer on February 10, 2026, and her amended demurrer on March 9, 2026. While a defendant may file a demurrer and answer at the same time, a defendant cannot file a demurrer after an answer has been filed. (Code Civ. Proc., §§ 430.30, subd. (c), 1170, subd. (a).)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial: